

Smt. Guddi Begum v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 7 May 2022 · WRIT-C No. 1002 of 2022 · WRIT - C No. - 1002 of 2022
· **Writ dismissed; petitioner relegated to Clause 6.8 objection.**

HEADNOTE

A writ against an electricity assessment was dismissed without examining merits because Paragraph 6.8 of the U.P. Electricity Supply Code, 2005 affords an alternative remedy to object before the assessing authority. If the objection is filed within four weeks with a certified copy of the order, respondent no. 2 must decide it within the next four weeks by a reasoned speaking order after hearing.

FACTUAL SUMMARY

Smt. Guddi Begum filed a writ petition against the State of Uttar Pradesh and two others. On 7 February 2022 none appeared for her even in the revised call, and the matter was directed to be listed as a fresh case. On 7 May 2022 she again remained unrepresented. Standing Counsel for the State submitted that an alternative remedy was available under Paragraph 6.8 of the U.P. Electricity Supply Code, 2005, to raise an objection before respondent no. 2.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

alternative remedy to object to assessment

HOLDING

Where Standing Counsel points out an alternative remedy under Para 6.8 of the U.P. Electricity Supply Code, 2005 to raise an objection before respondent no. 2, the writ is dismissed without any opinion on merits, leaving the petitioner to file that objection in accordance with law. If the objection is filed within four weeks with a certified copy of the order, respondent no. 2 shall decide it within the next four weeks by a reasoned speaking order after affording a reasonable opportunity of hearing. ¶ 2-4

PRINCIPLE TAGS

alternative-remedy-statutory-appeal-6.8 The Division Bench accepted Standing Counsel's submission that Para 6.8 supplies an alternative remedy to object before respondent no. 2, dismissed the writ without merits, and directed time-bound reasoned disposal of any objection filed within four weeks. ¶ 2-4

assessment-6.8-alternate-remedy The petition was not decided on the assessment; the consumer was left to the Clause 6.8 objection path before respondent no. 2. ¶ 2-3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PETITIONER'S CHALLENGE

The Court twice recorded that it expressed no opinion on the merits and left the petitioner to the Clause 6.8 objection. ¶ 3, 5